CYBER LIABILITY INSURANCE POLICY

NOTICES:

This policy is issued by National Technology Insurance Company, Inc., a captive insurance company domiciled in the State of Utah. This captive insurer is not subject to all of the insurance laws and regulations of your state. State insurance insolvency guaranty funds are not available for this captive insurer.

THIS IS A "CLAIMS-MADE" LIABILITY COVERAGE FORM. It provides coverage for Claims first made against an Insured during the Policy Period (or any applicable Extended Reporting Period). Defense Costs reduce the Limit of Liability (unless otherwise stated) and may be applied against the Retention. Please read the entire Policy carefully.

In consideration of the payment of the premium, and in reliance upon the statements made in the **Application**, which is incorporated into and forms a part of this **Policy**, and subject to all of the terms, conditions, exclusions, and endorsements contained herein, the **Insurer** named in the Declarations and the **Insured** agree as follows:

This **Policy** is a binding legal agreement between the **Named Insured** (sometimes referred to herein as "You" or "Your") and the Insurer (referred to herein as "We," "Us," or "Our"). This **Policy** is issued in accordance with the terms stated below.

GENERAL TERMS AND CONDITIONS

SECTION I: TERMS AND CONDITIONS

Unless a specific **Coverage Part** states otherwise, these General Terms and Conditions apply to all **Coverage Parts**. The provisions of a **Coverage Part** apply only to that **Coverage Part**. If a term, condition, or limitation in a **Coverage Part** conflicts with these General Terms and Conditions, the **Coverage Part** controls that **Coverage Part** alone and does not affect any other **Coverage Part**. Any term defined in a **Coverage Part**, including words shown in **boldface**, has the meaning given in that **Coverage Part** when applied to that **Coverage Part**; otherwise, the definitions in these General Terms and Conditions apply.

SECTION II: DEFINITIONS

1. **Application** means all written or electronic statements, documents, warranties, and information submitted by or on behalf of an **Insured** to the **Insurer** for the purpose of underwriting this **Policy** or any prior policy that this **Policy** renews, replaces, or succeeds, including (i) signed applications and attachments, (ii) materials later provided at the **Insurer's** request, and (iii) public filings, if any, made by or for an **Organization** with the Securities and Exchange Commission during the twelve months preceding inception. The **Application** is deemed attached to and incorporated into this **Policy**.
2. **Change in Control** means:
    1. The merger, consolidation, or combination of the **Named Insured** into another entity such that the **Named Insured** is not the surviving entity; or
    2. The acquisition by any person or entity of more than 50% of the outstanding securities, voting securities, or equity interest of the **Named Insured**.
3. **Control** means either (a) direct or indirect ownership of more than 50 percent of the outstanding voting securities of an entity or (b) the contractual right to elect, appoint, or designate a majority of an entity's directors, trustees, managers, or equivalent governing persons.
4. **Coverage Part** means, to the extent purchased as identified in the Declarations, any of the following coverage sections of this Policy, which may be amended by Endorsement: Directors and Officers Liability, Employment Practices Liability, Fiduciary Liability, Cyber Liability, Technology Errors & Omissions Coverage, and Media Liability Coverage.
5. **Defense Costs** means the reasonable and necessary fees, costs and expenses incurred in the investigation, defense, or appeal of a Claim, including the cost of appeal bonds or similar bonds (without any obligation to furnish such bond on the part of the Insurer). **Defense Costs** shall not include wages, salaries, fees or benefit expenses associated with any **Insured Person** or the **Organization**'s overhead expenses.
6. **Employee** means any natural person:

1. whose labor or service is or was directed by the **Organization** as an employee on a full-time or part-time basis; and
2. solely under this Policy's Employment Practices Liability **Coverage Part**, temporary, seasonal, and leased employees, volunteer workers, and applicants or prospective employees seeking employment with the **Organization**;

but only while the person is acting in such capacity, and shall not include any independent contractors.

7. **ERISA** means the Employee Retirement Income Security Act of 1974, as amended, including its rules and regulations, and any similar law.
8. **Executive** means:
   1. any duly elected or appointed director, officer, member of a management or supervisory board, in-house general counsel, advisory-board member, natural-person general partner, or foreign equivalent of an **Organization**;
   2. the lawful spouse or domestic partner of any of the persons set forth in the above 1. of this definition, but only to the extent the spouse or domestic partner is a party to any **Claim** solely because of his or her status as the spouse or domestic partner of any such person and only for the purposes of any **Claim** seeking damages recoverable from marital community property, property jointly held by any such person and the spouse or domestic partner, or property transferred from any such person to the spouse or domestic partner; and
   3. the estates, heirs, legal representatives, trusts, estate planning vehicles or assigns of any of the persons set forth in 1. of this definition, but only in the event of such person's death, incapacity, or bankruptcy.
9. **Indemnifiable Loss** means **Loss** that the **Organization** is permitted or required to pay to or on behalf of an **Insured Person** under law, corporate charter, bylaws, or written agreement.
10. **Insolvency** means the appointment of a receiver, conservator, liquidator, trustee, rehabilitator, or similar official to manage, supervise, or liquidate an **Organization**, or the **Organization** becoming a debtor in possession within the meaning of the United States Bankruptcy Code or similar legal status under foreign law.

K. **Named Insured** means the legal entity designated in the Declarations as the **Named Insured**.

L. **Non-Indemnifiable Loss** means **Loss** that the **Organization** is neither permitted nor required to pay to or on behalf of an **Insured Person** under law, corporate charter, bylaws, or written agreement.

13. **Organization** means the **Named Insured** and any **Subsidiary**, including any such entity as a debtor in possession within the meaning of the United States Bankruptcy Code or similar legal status under foreign law.
14. **Policy** means, collectively, the General Terms and Conditions, Declarations, all **Coverage Parts** indicated as purchased, and all Endorsements.
15. **Policy Period** means the time period shown in the Declarations, subject to earlier cancellation in accordance with **Policy** terms.

16. **Contaminant** means any solid, liquid, gaseous, biological, thermal or radioactive substance that can irritate, corrupt or harm persons, property, water, air or soil, including by-products and waste.
17. **Regulatory Body** means any federal, state, local or foreign law enforcement or governmental authority or the enforcement unit of any securities exchange or similar self-regulating body.
18. **Related Claims** means all **Claims** based upon, arising out of, or in any way involving the same **Wrongful Acts** or **Related Wrongful Acts**, regardless of the number of claimants, **Insureds**, or proceedings.
19. **Related Wrongful Acts** means any **Wrongful Acts** which have as a common nexus any common fact, circumstance, situation, event, transaction, cause or series of causally related facts, circumstances, situations, events, transactions, or causes.
20. **Senior Executive** means the Chief Executive Officer, Chief Financial Officer, President, Chief Operating Officer, or General Counsel (or any individual serving in an equivalent position) of the **Organization** or any person who signed the **Application**.
21. **Subsidiary** means any entity over which the **Named Insured** has **Control**, including any not-for-profit entity exclusively controlled by the **Named Insured**.

SECTION III. LIMITATIONS OF LIABILITY

1. **Policy Limit of Liability** – The Policy Limit of Liability stated in the Declarations is the maximum amount We will pay under this **Policy** for all **Loss** covered by all **Coverage Parts** combined.
    1. Any **Loss** paid under one **Coverage Part** shall reduce the remaining Policy Limit of Liability available for **Loss** under all other **Coverage Parts**.
    2. If a single **Claim** is covered under multiple **Coverage Parts**, the most We will pay for that Claim will not exceed the highest single **Coverage Part** limit applicable to that **Claim**.
2. **Coverage Part Aggregate Limit of Liability** – Subject to the Policy Limit of Liability, any **Coverage Part** Aggregate Limit of Liability stated in the Declarations is the most We will pay under the respective **Coverage Part** for all **Claims** covered under that **Coverage Part**. Each **Coverage Part's** Aggregate Limit of Liability is part of, and not in addition to, the Policy Limit of Liability.
3. **Coverage Limits of Liability** – Subject to the Policy Limit of Liability and any applicable **Coverage Part** Aggregate Limit of Liability, each Coverage Limit of Liability stated in the Declarations for an Insuring Agreement is the maximum we will pay under that respective Insuring Agreement.
4. **Sublimits of Liability** – Any Sublimit of Liability, if any, stated in the Declarations is the most We will pay for all **Loss** that is subject to that Sublimit. Each such Sublimit is part of, and not in addition to, the applicable **Coverage Part** Limit of Liability and the **Policy** Limit of Liability.

5. **Defense Costs** – **Defense Costs** are part of, and not in addition to, the Limits of Liability applicable to each **Coverage Part**. Payment by Us of **Defense Costs** will reduce and may exhaust the applicable Limit of Liability.
6. **Exhaustion of Limits** – If any applicable Limit of Liability under this **Policy** is exhausted by the payment of **Loss**, our obligations under this **Policy** (including, without limitation, any duty to defend) shall be completely fulfilled and extinguished. We are entitled to pay **Loss** as it becomes due and payable, without consideration of any other future potential payment obligations under this **Policy**.

SECTION IV. COVERAGE TERRITORY

This **Policy** applies to **Claims** on a worldwide basis unless otherwise stated in a particular **Coverage Part**, and always subject to applicable law and sanctions. All premiums, Limits of Liability, Retentions, **Loss**, or other amounts under this **Policy** are expressed and payable in the currency of the United States of America (U.S. dollars). If any judgment, settlement, or other element of **Loss** under this **Policy** is stated in a currency other than U.S. dollars, payment under this **Policy** shall be made in U.S. dollars at the rate of exchange published in *The Wall Street Journal* on the date the final judgment is entered, the settlement amount is agreed upon, or the other element of **Loss** becomes due.

However, this **Policy** will not apply in any country or territory where such application would violate the laws of the United States. This includes, but is not limited to, any country or region that is subject to U.S. economic or trade sanctions or export control laws administered by the U.S. Treasury Department's Office of Foreign Assets Control (OFAC) or other applicable U.S. government agencies.

SECTION V. RETENTIONS

1. Our liability to pay **Loss** on account of any **Claim** shall apply only to that part of the **Loss** which is in excess of the applicable Retention amount stated in the Declarations. We will have no responsibility to pay any **Loss** until the applicable Retention has been fully satisfied. You shall be responsible for payment of the Retention, which shall remain uninsured. Payment of any Retention shall not reduce the Limits of Liability under this **Policy**.
2. If a single **Claim** (including any **Related Claims**) is covered in whole or in part under more than one **Coverage Part**, the Retention applicable to each **Coverage Part** will apply to the **Loss** covered under that **Coverage Part**. However, the sum of all Retentions applicable to such **Claim** shall not exceed the largest applicable Retention among the **Coverage Parts** involved.
3. If any covered **Loss** within an applicable Retention is paid on behalf of an Insured (including on behalf of an Insured Person) by any source other than You, such payment will erode or reduce the Retention to the extent of that payment. This includes payments made under another valid insurance policy (such as a Side-A Difference-In-Conditions policy specifically excess of this **Policy**).
4. No Retention shall apply to **Non-Indemnifiable Loss**.

SECTION VI. RELATED CLAIMS

All **Related Claims** shall be deemed to be one single **Claim** for the purposes of this **Policy**. Such **Claim** shall be deemed first made on the date the earliest of the **Related Claims** was first made against any **Insured**, regardless of whether that date falls before, during, or after the **Policy Period**. In no event shall a single lawsuit or proceeding be treated as more than one **Claim**, even if it involves multiple claimants or causes of action or alleges multiple or different **Wrongful Acts**.

SECTION VII. EXTENDED REPORTING PERIOD

1. **Automatic Extended Reporting Period:** No automatic extended reporting period applies under this **Policy**. Coverage for **Claims** first made after the end of the **Policy Period** is available only if the **Named Insured** elects to and purchases an Optional Extended Reporting Period pursuant to Section VII.B.
2. **Optional Extended Reporting Period:**
    1. If any **Coverage Part** is cancelled or not renewed by Us or by You, then You shall have the right to purchase an Optional Extended Reporting Period for that **Coverage Part**, which will begin immediately after the effective date of cancellation or nonrenewal. This Optional Extended Reporting Period (if purchased) will extend the time period during which you may report **Claims** to us under the cancelled/non-renewed **Coverage Part**, but only for **Claims** arising from **Wrongful Acts** that occurred entirely prior to the effective date of cancellation or nonrenewal.
    2. The available durations (time periods) for the Optional Extended Reporting Period and the additional premium amounts for each are set forth in the Declarations. To exercise this right, you must provide written notice to us of your election and pay the applicable additional premium within 60 days after the effective date of cancellation or nonrenewal. Once 60 days have passed after the cancellation or nonrenewal, the right to purchase the Optional Extended Reporting Period for that **Coverage Part** expires.
    3. If an Optional Extended Reporting Period is purchased, the entire additional premium for it shall be deemed fully earned at the inception of the Optional Extended Reporting Period. The Optional Extended Reporting Period cannot be cancelled by either You or Us after it has been activated (except in the event that the **Policy** is reinstated or renewed without a lapse in coverage).
    4. The Optional Extended Reporting Period does not increase the Limits of Liability under this **Policy**. The available Limits of Liability for **Claims** reported during any Extended Reporting Period are those remaining under the **Policy** (and applicable **Coverage Part**) as of the end of the Policy Period, and **Loss** paid towards **Claims** falling within the Extended Reporting Period erode and may exhaust the applicable Limits of Liability.
    5. Except as otherwise provided in **SECTION IV. RELATED CLAIMS**, a **Claim** first made against an Insured during any Optional Extended Reporting Period and properly reported to us in accordance with the **Policy** shall be deemed to

have been made on the last day of the Policy Period, provided the Claim arises from a Wrongful Act occurring prior to the effective date of cancellation or nonrenewal.

SECTION VIII. DEFENSE OF CLAIMS AND SETTLEMENT

1. **Duty to Defend:** We will and have the right and duty to defend any **Claim** against an **Insured**, even if the allegations in such **Claim** are groundless, false or fraudulent. This duty to defend applies only to **Claims** covered by one or more **Coverage Parts** of this **Policy** and shall cease when the applicable Limit of Liability (whether a **Coverage Part** limit or the **Policy** Limit) has been exhausted by payment of Loss.
2. **Cooperation, Settlement and Consent:**
    1. **Insured's Duty to Cooperate:** The **Insureds** agree that they will not admit or assume any liability, voluntarily enter into any settlement agreement, stipulate to any judgment, or incur any **Loss** without Our prior written consent, with such consent not to be unreasonable withheld. We shall not be liable for, nor bound by, any settlement, assumed obligation, admission of liability, or **Defense Costs** to which We have not agreed in writing. However, if you are able to settle a **Claim** for an amount (including **Defense Costs**) that does not exceed the applicable Retention, our consent is not required for that settlement. In that event, You must promptly notify Us of the resolution of the **Claim** and provide details of the settlement.

       The **Insureds** agree to cooperate with Us in the investigation, defense, and settlement of any **Claim**. The **Insureds** further agree to provide Us any such information, assistance, and cooperation as We or defense counsel may reasonably request.
    2. **Insurer's Right to Settle:** We shall have the right to investigate any **Claim** and to make any settlement offer we deem appropriate in a **Claim**, but we will not commit to any settlement without the consent of the **Insured**, such consent not to be unreasonably withheld.
    3. **Consequences of Refusal to Consent (Hammer Clause):** If We recommend a settlement of a **Claim** within the remaining applicable Limit of Liability and the **Insured** does not consent to such settlement, our liability for that **Claim** shall not exceed the amount for which the **Claim** could have been settled, plus **Defense Costs** incurred up to the date that the **Insured** refused consent. In such case, We will have the right to withdraw from the further defense of the **Claim**, and you shall assume the defense of the **Claim** at your own cost. Our obligation to pay any further **Loss** for that **Claim** will cease once We have paid the amount of the proposed settlement (plus **Defense Costs** incurred up to the refusal date), subject to the applicable Limit of Liability.

SECTION IX. NOTICE OF CLAIMS AND POTENTIAL CLAIMS

1. **Notice of Claims:** As a condition precedent to coverage under this Policy, the Insured (or the Named Insured on behalf of any Insured) must give written notice to us of any Claim made against an Insured as soon as practicable after a **Senior Executive** first becomes aware of the **Claim**. In all events, such notice of Claim must be given no later than ninety (90) days after the end of the **Policy Period** (or within any applicable Extended Reporting Period).
2. **Effect of Late Notice:** If the Insured fails to give notice of a Claim as soon as practicable as required in IX.A above, such failure shall not invalidate coverage for the Claim **unless** we demonstrate that we have been materially prejudiced by the late notice. In other words, we will not deny coverage based solely on a failure to give prompt notice, except to the extent that the delay has caused us actual material prejudice in our ability to defend or respond to the Claim.
3. **Notice of Circumstances (Potential Claims):** If during the Policy Period (or any applicable Extended Reporting Period) an Insured first becomes aware of any specific Wrongful Act, fact, or circumstance that could reasonably give rise to a future Claim, the Insured may provide written notice to us of such circumstances. If such notice is given to us during the Policy Period (or Extended Reporting Period), then any Claim that is subsequently made against an Insured arising from those reported circumstances shall be deemed to be a Claim first made during this Policy Period (on the date we received the notice of circumstances). We will treat any such subsequent Claim as if it had been reported at the time of the original notice of circumstances.
4. **Contents of Notice of Circumstances:** If you choose to report circumstances that may give rise to a Claim, you should include the following information in your notice (to the extent known):
    1. A description of the specific Wrongful Act(s) or alleged wrongful conduct at issue, and the circumstances in which it occurred or is suspected to have occurred;
    2. The nature of any potential or alleged damage or injury that may result from such circumstances;
    3. The identities of any potential claimants (persons or entities likely to bring a Claim) and any Insureds known to be involved in or affected by the matter; and
    4. The manner in which you first became aware of the Wrongful Act, fact, or circumstance (including the date it came to your attention).
    5. Providing as much detail as possible will help establish any later Claim as relating back to this notice of circumstances.
5. **Notices from Insurer to Insured:** Any notices required to be given by us to you (such as notice of cancellation or non-renewal, if applicable) shall be sent in writing to the Named Insured at the address specified in the Declarations, or to any updated address of record provided to us in writing. Such notice will be effective upon mailing or electronic transmission by us to that address.
6. **Optional Notice Provisions:** If any Coverage Part of this Policy provides that you **may** (but are not required to) provide notice of an incident, event, or potential claim to us (sometimes called a “notice of circumstance” or similar provision), your decision not to give such optional notice will not prejudice your right to coverage for a Claim arising from

the incident or event at a later date. In other words, if a Coverage Part permits but does not require early notice of a potential Claim, the failure to exercise that option will not, in itself, prevent you from obtaining coverage for a related Claim, provided that the Claim is reported in accordance with the terms of this Policy (or any renewal or replacement of this Policy).

SECTION X. COOPERATION

You (as identified in the Application or Endorsements) agree to provide us with all information, assistance, and cooperation which we may reasonably request in connection with any Claim, potential Claim, or circumstance notified under this Policy. This includes assisting in the investigation, defense, and settlement of Claims, attending hearings and trials, securing and giving evidence, obtaining the attendance of witnesses, and conducting negotiations. In the event of any Claim, you further agree not to do anything that could intentionally prejudice our position or our potential or actual rights of recovery.

The failure of any one Insured to cooperate with us as required by this section shall not be imputed to any other Insured. No Insured shall be denied coverage under this Policy solely because of the failure of another Insured to give notice or to cooperate with the investigation and defense of a Claim.

SECTION XI. ALLOCATION

If, in any Claim, an Insured incurs both covered Loss and uncovered loss (because some of the allegations or causes of action in the Claim are covered by this Policy and others are not, **or** because the Claim includes both Insured parties and others who are not insured under this Policy), we will allocate the Loss between covered and uncovered amounts as follows:

1. **Defense Costs:** 100% of Defense Costs incurred in defending a Claim will be considered covered Loss, and we will pay Defense Costs in full (excess of any applicable Retention) to defend the entire Claim, even if the Claim includes matters or parties not covered. We reserve the right to later reallocate Defense Costs in the event it is finally determined that certain Defense Costs were incurred exclusively in relation to non-covered matters, but we will advance Defense Costs for the entire Claim pursuant to Clause VIII.A., pending any such determination.
2. **Other Loss:** Loss other than Defense Costs (including damages, settlements, judgments, and awards) shall be allocated between covered Loss and uncovered loss based on the relative legal exposure and financial exposure of the parties to the covered and uncovered matters. This allocation will take into account the extent to which any covered Wrongful Acts and any uncovered conduct or parties contributed to the Loss amount.

We and you shall use our best efforts to agree upon a fair and proper allocation of Loss. If we and you cannot agree on the allocation, we will, until a final allocation is agreed upon or determined, advance the portion of the Loss which we believe in good faith to be covered under this Policy (subject to applicable limits of liability). The allocation of Loss (if disputed) may be determined by mediation, arbitration, or a final judgment or decision of a court or other adjudicative body.

SECTION XII. COORDINATION OF COVERAGE

If a single Claim gives rise to Loss that is covered under more than one Liability Coverage Part, the Claim will be treated as one loss event. We will pay only once for that Loss, and our total payment will not exceed the smallest of:

1. the actual amount of Loss;
2. the sum of the available Limits of Liability for each applicable Coverage Part that does **not** share a combined limit; or
3. the combined Limit of Liability shown in the Declarations for any applicable Coverage Parts that share such a limit.

The overall Policy Limit of Liability always applies. Allocation of the payment between Coverage Parts is for accounting purposes only and does not increase our total obligation.

Special Provision for Insured Person Loss: Notwithstanding the order of coverage above, if a single Claim includes any **Non-Indemnifiable Loss** of an Insured Person (for example, Loss of an Insured Person that the Organization is neither permitted nor able to indemnify), we will first pay such Loss on behalf of the Insured Person under the Management Liability Coverage Part (Directors & Officers Liability, Insuring Agreement A.1 for individual Insured Persons), until the limit of that Coverage Part is exhausted. Only then (if Loss remains) will we proceed to make payments under the other Coverage Parts in the order stated above for any remaining Loss.

SECTION XIII. CHANGES IN EXPOSURE

1. **Change in Control (Transactions Involving the Named Insured):** If during the Policy Period any of the following events occurs:
    1. The Named Insured merges into or consolidates with another entity such that the Named Insured is not the surviving entity; **or** any person, entity or group of affiliated persons/entities acquires ownership of more than 50% of the outstanding voting securities of the Named Insured (representing the present right to vote for the election of directors or equivalent management positions of the Named Insured);
    2. The Named Insured sells more than 50% of its assets to any person or entity (or group of persons or entities acting in concert);
    3. The Named Insured completes an initial public offering of its securities, or effects a reverse merger into a publicly traded entity, such that the Named Insured becomes a publicly held company; **or**
    4. The Named Insured becomes a Debtor in Possession, or an administrator, receiver, conservator, liquidator, trustee or similar official is appointed to supervise, manage, or take control of the Named Insured (including the point at which the Named Insured emerges from bankruptcy protection),

    (each of the above being a **Change in Control**), then you must give written notice to us of such Change in Control as soon as practicable, but in no event later than 60 days after the effective date of the transaction or event. Upon a Change in Control, coverage under all Coverage Parts shall continue in force until the end of the Policy Period, but only with respect to Claims for Wrongful Acts (or, where applicable, other covered

events) that occur entirely **before** the effective date of the Change in Control. No coverage shall be available under this Policy for any Wrongful Act, error, omission, or other event occurring on or after the effective date of the Change in Control.

After a Change in Control, the entire remaining premium for this Policy shall be deemed fully earned as of the date of the transaction (meaning no refunds shall be due). You shall have the right, within 60 days of the Change in Control, to request an extension of coverage for the run-off period specified in the Declarations (the **Run-Off Coverage Period**). This Run-Off Coverage, if purchased, will extend the reporting period under this Policy (for the affected Coverage Parts) to allow Claims to be reported during the Run-Off Coverage Period, but only for covered Wrongful Acts (or other covered events) that occurred prior to the effective date of the Change in Control. We will issue a Run-Off endorsement providing such Extended Reporting Period if you elect it and pay the additional premium stated in the Declarations for the Run-Off Coverage. The Run-Off Extended Reporting Period (if purchased) shall begin on the day immediately following the effective date of the Change in Control. If a Run-Off Extended Reporting Period is purchased pursuant to this section, no separate Extended Reporting Period under section VII above will apply for the affected Coverage Parts.

2. **Acquisition or Creation of a Subsidiary (or New Plan):** If, before or during the Policy Period, the Organization (i) acquires Control of an entity (by acquiring more than 50% of its voting securities or by acquiring substantially all of its assets), **or** (ii) creates or acquires a new Subsidiary, **or** (iii) creates or acquires a new Plan subject to the Fiduciary Liability Coverage Part, then such newly acquired or created organization or Plan shall automatically be covered under this Policy, but only for Wrongful Acts (or covered conduct) taking place after the effective date of such acquisition or creation.

   However, if the assets or revenues of any acquired entity exceed 10% of the total consolidated assets or revenues of the Named Insured (as reflected in the Named Insured's most recent audited financial statements as of the inception of this Policy), you must provide written notice of the acquisition to us as soon as practicable (but no later than 90 days after the effective date of the acquisition or creation). We reserve the right to impose additional or different terms, conditions, and/or to charge a reasonable additional premium as a condition of extending coverage to such large acquisition or newly formed entity beyond the initial 90-day period. Coverage for any such acquired entity or created Subsidiary beyond 90 days from the transaction is contingent upon your agreement to any additional terms and payment of any required premium. If agreement on terms or premium cannot be reached, coverage for the new entity may cease after 90 days from the acquisition.

   This section XIII.B does not apply to any Claim based upon or arising out of any Wrongful Act (or **Related Wrongful Acts**) that occurred in whole or in part **before** the date the new entity became a Subsidiary or was merged or consolidated with the Organization. In addition, no coverage shall apply to Loss arising from any act, error, or omission of the new entity or its Insured Persons that occurs after the date of acquisition but is related to acts or omissions that took place before the acquisition. (Such prior acts

or related acts may be considered for coverage under a separate policy or endorsement, if available and negotiated with us.)

3. **Loss of Subsidiary Status (Sale or Divestiture):** If any organization ceases to be a **Subsidiary** before or during the Policy Period (for example, due to sale, dissolution, or other divestiture such that the Named Insured no longer maintains Control of that entity), then coverage under this Policy for such entity and its Insured Persons shall continue but only for Claims for Wrongful Acts that occurred entirely during the time that entity was a Subsidiary. In other words, after the date the entity ceases to be a Subsidiary, no coverage shall apply under this Policy for any new Wrongful Acts (or other covered events) by that entity or its Insured Persons.

If a Plan insured under the Fiduciary Liability Coverage Part is terminated before or during the Policy Period, coverage for such Plan (and any Insureds in their fiduciary capacities with respect to that Plan) will continue in force until the expiration of the Policy Period (or earlier termination of the Fiduciary Liability Coverage Part), but only for Wrongful Acts or breaches of fiduciary duty that occurred prior to the date the Plan was terminated. Thereafter, no coverage under this Policy shall apply for acts, errors or omissions in the administration or management of the terminated Plan, except to the extent an Extended Reporting Period applies.

SECTION XIV. APPLICATION (REPRESENTATIONS AND SEVERABILITY)

You (the Insureds) represent and acknowledge that the statements and information contained in the **Application** for this Policy are true, accurate, and complete, and that we have issued this Policy in reliance upon the truth and accuracy of those representations. The Application (and all written materials submitted or created as part of the underwriting process, including any warranties or supplemental information provided to us) is deemed to be incorporated into and constituting a part of this Policy.

If the Application contains any misrepresentation or omission of a material fact, and if such misrepresentation or omission materially affected either the acceptance of the risk or the hazard assumed by us, then no coverage shall be afforded under this Policy for any Claim involving any Insured who knew, as of the inception date of this Policy, the facts that were not truthfully disclosed in the Application. The foregoing applies whether or not the particular Insured actually knew that the Application contained such misrepresentation or omission. For purposes of determining the application of this provision:

1. Knowledge of any fact or omission by one Insured Person (including any Insured Person) shall not be imputed to any other Insured Person. No Insured Person shall be denied coverage based on a misrepresentation in the Application, unless that individual actually knew the Application was untrue with respect to the material facts at issue.
2. Only the knowledge of a **Senior Executive** shall be imputed to the **Organization**. Thus, the **Organization**'s coverage (and any coverage for its **Plans**) will be excluded due to a misrepresentation or omission in the **Application** only if a **Senior Executive** knew the true facts that were not disclosed. Knowledge of any other **Insured Person** who is not also a **Senior Executive** will not be imputed to the **Organization**.

In no event will we **rescind** or void this Policy in its entirety based on misrepresentations in the Application. However, this provision does not prevent us from denying or limiting coverage as to a specific Insured or Claim if the circumstances so warrant, as provided above. This Policy is non-rescindable by us after inception for any reason other than non-payment of premium.

SECTION XV. ACTION AGAINST THE INSURER

No claimant or other party may include the Insurer in any Claim filed against an Insured, and an Insured may not join, implead, or otherwise bring the Insurer into such a proceeding as a third party.

No action at law or in equity may be brought against the Insurer to recover under this Policy unless, as conditions precedent: (i) the Insured has fully complied with every term and condition of the Policy, and (ii) the Insured's liability for Loss has been fixed by a final, non-appealable judgment or by a written settlement signed by the Insured, the claimant, and the Insurer.

For coverage written on a first-party basis—including any coverage under the Cyber Coverage Part for a Data Incident or other direct loss—no action may be taken against the Insurer unless all Policy terms have been met, including timely notice. The Insured must wait at least ninety (90) days after submitting a sworn proof of loss with full particulars before starting any action, and any such action must be brought within two (2) years after the Insured first discovered the event or loss, unless a longer period is required by law.

Nothing in this clause grants a third party any right to sue the Insurer directly except as provided by applicable law; it governs only actions brought by an Insured under this Policy.

SECTION XVI. ASSIGNMENT

No change, modification, or assignment of interest under this Policy shall be valid unless made by a written endorsement issued by us and expressly made part of this Policy. This Policy (and any rights or interests hereunder) may not be assigned by any Insured without our prior written consent, which may be granted or withheld in our sole discretion. Any assignment made without our written consent shall be null and void as to us.

SECTION XVII. NAMED INSURED'S AUTHORITY

By acceptance of this Policy, the Named Insured is authorized to act on behalf of all Insureds with respect to all matters regarding this Policy. In particular (but without limitation), the Named Insured will act on behalf of all other Insureds for the purposes of: giving and receiving notices (including notice of cancellation or nonrenewal), paying premiums and receiving any return premiums, electing or declining any Extended Reporting Period or other optional coverages, endorsing the Policy, consenting to any settlement (to the extent such consent is required from an Insured), and otherwise managing or administering this Policy. All Insureds agree that the Named Insured shall be the sole agent for and represent all Insureds in such matters.

SECTION XVIII. CANCELLATION

1. **By Us (Non-Payment of Premium):** We may cancel this Policy or any Coverage Part **only** for non-payment of premium. In the event we must cancel for non-payment, we will provide written notice to the Named Insured at least twenty (20) days (or such longer period as may be required by applicable law) before the effective date of cancellation. The notice will state the effective date of cancellation, and the Policy Period shall terminate on that date if the premium remains unpaid. If you remit the full premium owed during the notice period, the cancellation shall not take effect and coverage will continue uninterrupted. (Except for non-payment of premium, we will not cancel this Policy during the Policy Period.)
2. **By You (Named Insured):** The Named Insured may cancel this Policy or any Coverage Part by giving us prior written notice of the desired cancellation date. The cancellation will be effective on the date we receive your notice (unless a later date is specified by you). If the Named Insured cancels the Policy, we will refund any unearned premium on a pro-rata basis for the unused portion of the Policy Period. Our tender of any return premium is not a condition precedent to the effectiveness of cancellation, but will be made as soon as practicable after cancellation.
3. **Non-Renewal:** If we elect not to renew this Policy (or a specific Coverage Part), we will provide the Named Insured with no less than sixty (60) days advance notice of non-renewal prior to the expiration of the Policy Period (or such notice period as required by state law). The notice will be sent to the Named Insured's address shown in the Declarations (or the last known address on file) and will include the reason for non-renewal if required by law.

SECTION XIX. BANKRUPTCY OR INSOLVENCY

The bankruptcy, insolvency, receivership or dissolution of any Insured (including any Organization or any Insured Person) shall not relieve us of our obligations under this Policy. In the event a liquidation or reorganization proceeding is commenced by or against the Organization (under federal bankruptcy law or any similar law), the Organization and the Insureds agree to waive and release any automatic stay or injunction which may apply in such proceeding to this Policy or any proceeds of this Policy. The Insureds further agree that, if requested by us, they will cooperate in obtaining relief from any such stay or injunction to allow the investigation, defense, settlement, payment, or advancement of Loss under this Policy.

SECTION XX. REFERENCES TO LAWS

Any statute, act, or code mentioned or referenced in this Policy (including in any endorsement) is deemed to include all amendments to such laws and all rules or regulations promulgated under such laws. If a statute, act, or code is mentioned in this Policy and is followed by the phrase "or any similar law," it shall be construed to include any similar federal, state, local or foreign law, common law, or regulation that is comparable in intent or effect to the cited law.

SECTION XXI. MOST FAVORABLE JURISDICTION FOR CERTAIN DAMAGES

Certain types of damages, fines, or penalties may not be insurable under some laws. It is the intent of this Policy to afford coverage to the fullest extent permitted by law for punitive, exemplary, and multiplied damages, and for civil fines and penalties, to the extent such matters

constitute Loss under the Policy. Accordingly, the insurability of such damages, fines or penalties shall be determined under the internal laws of any applicable jurisdiction that most favors coverage for the Insured for such damages or penalties. This means that if any jurisdiction connected to the Claim, the Insured, the Policy, or the Insurer permits insurance coverage for punitive, exemplary, or multiplied damages (or for specific statutory fines or penalties), then that jurisdiction's law may be applied (at the Insured's request) in determining the insurability of those amounts, even if the Claim is brought elsewhere.

Specifically, with respect to:

1. any judgment or award that includes punitive, exemplary, or multiplied damages;
2. any civil fine or penalty assessed against an Insured Person pursuant to Section 2(g)(2)(B) of the U.S. Foreign Corrupt Practices Act (15 U.S.C. §78ff) or Section 308(a) of the Sarbanes-Oxley Act of 2002 (15 U.S.C. §7246(a)), or any similar statutory penalty; **and**
3. any other matters which are uninsurable under the law that governs this Policy,

the issue of insurability shall be resolved by reference to the applicable law that most favors coverage for such Loss. We will not contend that such damages, fines, penalties or other Loss is uninsurable under this Policy except to the extent that it is uninsurable under **any** applicable law that has a significant connection to the Claim or to the Insured seeking coverage.

SECTION XXII. ADDITIONAL CONDITIONS

1. **Changes to the Policy:** Notice to or knowledge possessed by any agent, broker, or other person shall not effect a waiver or change in any part of this Policy, nor prevent us from asserting any right under the terms of this Policy. This Policy can only be changed, modified, or waived by a written endorsement issued by us and made a part of this Policy. No representative of the Insurer is authorized to make or agree to any alteration to the Policy except by formal endorsement.
2. **Titles and Headings:** The titles, headings, and captions in this Policy (including any endorsements) are included for convenience or reference only. They are not part of the terms of the insurance contract and shall not be considered in determining the meaning or effect of any provisions of this Policy.
3. **Premium and Adjustments:** You, as the Named Insured, agree to pay all premiums due for this Policy to us or to our authorized agent in accordance with the terms of the invoice or billing statement. The premium amount stated in the Declarations is the minimum premium for the Policy Period. If during the Policy Period there are changes in exposure or coverages that materially increase our risk (such as the acquisition or creation of a new Subsidiary, a merger, an Initial Public Offering, or the addition of new Coverage Parts or Insuring Agreements by endorsement), we reserve the right to adjust the premium during the Policy Period or upon renewal. Any additional premium charge or return premium due as a result of such changes will be calculated in accordance with our rules and rates. The Named Insured agrees to pay any additional premium reasonably required for an increase in exposure or coverage, and we will refund any return premium due for a decrease in exposure or elimination of coverage, pro rata for the time such coverage was not provided.

4. **Choice of Law and Forum:** This Policy, including its construction, application, and validity, shall be governed by the internal laws of the state specified in the Declarations as the principal address of the Named Insured. Any disputes involving this Policy shall be resolved in accordance with the laws of that jurisdiction, without regard to its conflict-of-law principles. (If no state is specified, or if the Named Insured's address is outside the United States, then the law of the State of New York shall apply.) Unless otherwise agreed by the parties, any litigation concerning this Policy shall be brought in a competent court in the chosen jurisdiction whose law applies.
5. **Other Insurance:** This Policy responds only after every other valid and collectible insurance that covers the same Loss, unless that other insurance is expressly written to be excess of this Policy and cites this Policy's form number. If a policy you purchased for the same risk covers the Loss, this Policy will apply strictly in excess of that policy's limits or, at the Insurer's sole option, on a primary basis with the right to seek contribution from the other insurer. The Insurer's payment will not exceed the proportion that this Policy's Limit of Liability bears to the combined limits of all insurance available for the Loss.

Further, if any Claim or Loss covered under this Policy is also covered, in whole or in part, under one or more other policies issued by us (or any member company or affiliate of ours) to any Insured, our maximum aggregate liability under all such policies combined shall not exceed the largest single available limit of liability under any one of those policies. This means that you cannot recover more than once from us for the same Claim or Loss. The coverage provided under multiple policies issued by us for the benefit of an Insured shall not be duplicated or stacked. Any amounts paid under one such policy will reduce the limits available under the other policy (or policies) issued by us for the same Loss, and we may choose which policy or policies will respond.

(The above Other Insurance clause does not apply to insurance policies specifically arranged to be excess of this Policy, such as an excess Side-A DIC policy, nor will it operate to dilute or impair such excess insurance. It is intended to prevent double recovery or the unintended stacking of limits where the Insured has multiple policies from the same insurer covering overlapping risks.)

SECTION XXIII. COMMON EXCLUSIONS – APPLICABLE TO ALL LIABILITY COVERAGE PARTS

We shall not be liable to pay any Loss (including Defense Costs) in connection with any Claim made against any Insured under any Liability Coverage Part of this Policy:

1. **Profit or Fraud:** To the extent the Claim is brought about or contributed to by: (a) an Insured gaining any personal profit, financial advantage, or other remuneration to which they were not legally entitled; **or** (b) the deliberate fraudulent act or criminal act of any Insured. However, this exclusion shall not apply unless and until there is a final, non-appealable adjudication in the underlying proceeding establishing that such conduct occurred. (For example, this exclusion will not apply until a trial court judgment or other final adjudication finds that an Insured committed deliberate fraud or obtained an illegal profit, and that judgment is no longer subject to appeal.)

2. **Prior Notice / Prior Claim:** Based upon, arising out of, or in any way involving any Wrongful Act or any fact, circumstance or situation which has been the subject of any notice of claim or potential claim given before the inception of this Policy under any other insurance policy or coverage part of which this Policy is a direct or indirect renewal or replacement. In other words, if you have given notice of a claim or circumstance to a prior insurer (or under a prior policy issued by us) before the start of this Policy Period, any continuation of that matter is excluded from coverage under this Policy.
3. **Known Wrongful Acts (Prior Knowledge):** Based upon, arising out of, or in any way involving any Wrongful Act (or Interrelated Wrongful Act) that any **Senior Executive** of the Organization was aware of prior to the **Prior Acts Date** stated in the Declarations (or, if no Prior Acts Date is specified, prior to the inception date of the applicable Coverage Part), if such **Senior Executive** had reason to believe at that time that such Wrongful Act could reasonably be expected to result in a Claim. This exclusion applies only with respect to an Insured who had such knowledge or reason to believe. It will not apply to any other Insured who did not have such knowledge (see Imputation clause below).
4. **Prior & Subsequent Subsidiary Acts:** Based upon, arising out of, or in any way involving:
    1. any Wrongful Act actually or allegedly committed **before** the effective date that any entity became a **Subsidiary** (or before the effective date of a merger or consolidation in which the Organization is the surviving entity), if such Claim is made against an Insured in their capacity as an Insured of that entity;
    2. any Wrongful Act actually or allegedly committed **on or after** the effective date an entity became a Subsidiary (or was merged with the Organization) if such Wrongful Act, **together with** a Wrongful Act committed or allegedly committed before the date the entity became a Subsidiary or was merged, would constitute **Related Wrongful Acts**; **or**
    3. any Wrongful Act actually or allegedly committed **after** the date an entity ceases to be a Subsidiary, if such Claim is made against an Insured in their capacity as an Insured of that former Subsidiary.

    (This exclusion ensures that we do not insure, under this Policy, conduct of an acquired entity that took place prior to acquisition (or conduct after acquisition that is continuous of pre-acquisition conduct), or conduct of an entity after it has been sold or dissolved. Coverage for such acts would need to be negotiated separately.)

5. **Contamination:** Based upon, arising out of, or in any way involving any actual, alleged, or threatened discharge, dispersal, release, escape, seepage, migration, or emission of Contaminants into or on real or personal property, water, air, or any other environmental medium; **or** any direction or request to test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize Contaminant. "**Contaminats**" includes, but is not limited to, any solid, liquid, gaseous or thermal irritant or pollutant, smoke, vapor, soot, fumes, acids, alkalis, chemicals, hazardous substances, waste, biological or infectious agents, mold,

fungi, spores, electromagnetism, nuclear materials, radiation, or any other substance defined by environmental law as a pollutant or contaminant.

Imputation and Severability of Exclusions: For purposes of determining the applicability of the above exclusions, no Wrongful Act, knowledge, or state of mind of any Insured Person will be imputed to any other Insured Person. Only the Wrongful Acts, knowledge, or conduct of a past, present or future Chief Executive Officer or Chief Financial Officer of the Named Insured shall be imputed to the **Organization** (and only for purposes of determining if an exclusion applies to claims against the Organization).

Where an exclusion above requires a final adjudication in the underlying proceeding (such as the Profit/Fraud exclusion), we will provide defense coverage for Insureds until such time as the required adjudication establishes that the exclusion applies, subject to the terms and conditions of this Policy. If any Insured is exonerated from the allegations or conduct at issue, this Policy will continue to provide them coverage to the extent of its terms.

CYBER LIABILITY

SECTION I: INSURING AGREEMENTS

Coverage A – Network Security and Privacy Liability
We agree to pay on behalf of the **Insured** all **Loss** resulting from a **Claim** first made against the **Insured** during the **Policy Period** (or any Extended Reporting Period) for a **Wrongful Act** and reported to us in accordance with Section IX. of this **Policy**'s General Terms and Conditions, provided that the **Wrongful Act** occurred after the **Retroactive Date** specified in the Declarations and before the end of the **Policy Period**.

SECTION II: DEFINITIONS

1. **Claim** means:
    1. a written demand for monetary or non-monetary or injunctive relief against any an **Insured**; or
    2. a civil proceeding, arbitration, or alternative dispute resolution proceeding initiated against an **Insured**;

    Claim does not include any investigation or criminal or regulatory proceeding.
2. **Loss** means the amount that an **Insured** becomes legally obligated to pay as a result of a **Claim**, including compensatory damages, settlements, judgments, prejudgment or post-judgment interest, statutory attorney fees pursuant to a covered judgment against

an **Insured**, punitive or exemplary damages, and **Defense Costs**, except to the extent any such amounts are uninsurable as a matter of applicable law.

Loss does not include:

1. the cost of providing non-monetary or injunctive relief (including the cost to improve or remediate any security flaws or to upgrade, replace, or improve any **Computer System**);

2. taxes or the loss of tax benefits, fines, or penalties;

3. the multiplied portion of any multiplied damage award;

4. the return or disgorgement of profits, fees or charges; or

5. any amount or matter deemed uninsurable under applicable law.

3. **Security Breach** means an act or event resulting in unauthorized access to, unauthorized use of, or malicious interference with a **Computer System**. This includes:
    1. the intentional unauthorized access to or use of the **Insured**'s **Computer System** by any person (including hacking);
    2. the infection of the I**nsured**'s **Computer System** by malicious code or software (such as viruses, worms, or malware) originating from outside the Insured's organization;
    3. a **Denial of Service Attack** (intentional interruption of access to a **Computer System**, including by overloading or flooding a network);
    4. the **Insured**'s **Computer System** being used to participate in or facilitate a denial of service attack or spread of malicious code to a third party's system.
4. **Privacy Breach** means any of the following committed by the **Insured** or for which the **Insured** is legally responsible:
    1. the theft, loss, or unauthorized disclosure of or unauthorized access to **Personal Information** or **Corporate Information** in the care, custody or control of the **Insured** (or a third party service provider holding such information on behalf of the **Insured**);
    2. a failure to properly handle, manage, store, destroy or otherwise protect **Personal Information** or **Corporate Information** in accordance with any duty imposed by law or contract;
    3. any violation of a **Privacy Law** by the **Insured**, including any failure to provide any required notice of an actual or suspected unauthorized disclosure of **Personal Information** or **Corporate Information**.

    Privacy Breach includes any such acts or incidents whether by negligence or accidental error, and includes incidents caused by rogue employees or by external actors.

5. **Personal Information** means any information or data, in any format, that can be used to identify an individual person (such as a customer, client, or consumer). Personal Information includes, but is not limited to: an individual's name, address, telephone number, email address, social security or other government-issued identification number, driver's license number, passport number, financial account or payment card number, account passwords or access credentials, biometric identifiers (e.g. fingerprint, retina, or

face scans), medical or health information, or any other non-public personal information as defined by any **Privacy Law**. Personal Information does not include information that is lawfully made available to the general public from government records or widespread public sources.

6. **Corporate Information** means any confidential or proprietary information of a third-party entity (such as a business client or partner) that is not available to the general public, and which is provided to the **Insured** under an agreement or obligation to keep such information confidential. Corporate Information includes, but is not limited to: trade secrets, manufacturing processes, designs, plans, formulas, non-public financial information of a third party, source code or software of a third party, client lists, or any similar proprietary business information of a third party that is not intended for public release.
7. **Computer System** means computers, servers, networking equipment, cloud computing resources, communications systems, electronic devices, and associated input, output, processing, storage or communication devices (including websites, intranets, and mobile devices) that are owned, leased, or operated by the **Insured Organization**. **Computer System** also includes any such systems operated or provided by a third-party service provider under a written contract to maintain, process, store, or transmit electronic data for the **Insured** (including cloud storage services or hosting providers), to the extent the **Insured** is legally liable for incidents affecting those systems.
8. **Privacy Law** means any local, state, federal, or foreign law or regulation that governs the collection, use, safeguarding, disposal, or confidentiality of **Personal Information**, or notification to persons affected by unauthorized disclosure of **Personal Information**. **Privacy Law** includes, but is not limited to, data protection and privacy laws such as the California Consumer Privacy Act (CCPA), the General Data Protection Regulation (GDPR), the Health Insurance Portability and Accountability Act (HIPAA), Gramm-Leach-Bliley Act (GLBA), state breach notification laws, and any rules or regulations promulgated under the foregoing. **Privacy Law** also includes any law that requires the **Insured** to implement and follow a privacy policy or to timely notify individuals or authorities in the event **Personal Information** is compromised.
9. **Insured** means any **Organization** or **Insured Person**.
10. **Insured Person** means any natural person who is or was:
    1. an **Executive**; or
    2. an **Employee**.
11. **Subsidiary** means any entity of which the Named Insured owns more than 50% of the voting stock or has majority control, either on or before the inception date of this Policy or acquired or created during the Policy Period (subject to the provisions of the Policy regarding acquisitions or newly formed entities).
12. **Retroactive Date** means the date specified in the Declarations as the Retroactive Date for this Coverage Part. The Policy will not cover any act, error, omission, incident or Security Breach or Privacy Breach that occurred (or is alleged to have occurred) before this date.
13. **Wrongful Act** means any **Security Breach** or **Privacy Breach**.

SECTION III: LIMITATIONS OF LIABILITY AND RETENTIONS

1. **Limits of Liability:** The Limits of Liability stated in the Declarations for this Coverage Part apply as follows:
    1. **Each Claim Limit:** The amount specified as the "Each Claim" Limit is the maximum we will pay for Damages and Defense Costs combined for each single Claim covered under this Coverage Part. If no separate "Each Claim" limit is stated, then the Coverage Part Aggregate Limit applies to each Claim. All Related Claims (as defined below) shall be deemed one Claim and shall collectively be subject to one Each Claim Limit (if applicable).
    2. **Coverage Part Aggregate Limit:** The amount specified in the Declarations as the Aggregate Limit for this Coverage Part is the maximum amount we will pay for all covered Claims combined under this Coverage Part. This aggregate limit is inclusive of all Defense Costs and Damages for all Claims. Once the Coverage Part Aggregate Limit is exhausted by payment of Damages and/or Defense Costs, we shall have no further obligation to defend or pay any Claim or Loss under this Coverage Part.
    3. **Related Claims:** Claims that arise from the same or related facts, circumstances, situations, events, or series of events will be considered a single Claim for the purposes of Limits of Liability and Retention. All such Claims will be deemed first made at the time the earliest of those Claims was first made against any Insured, or when notice of a circumstance was first given to us in accordance with this Policy, whichever is earlier.
2. **Retention:** The Retention amount stated in the Declarations for this Coverage Part (as applicable to Coverage A – Network Security and Privacy Liability) shall apply to each Claim. The Insured must bear all covered Damages and Defense Costs up to the amount of the Retention for each Claim, and we will only be liable for amounts in excess of such Retention. The Retention applies separately to each Claim (including Related Claims deemed as one Claim). We have no obligation to pay any part of the Retention on behalf of the Insured. The Retention is not reduced by our adjustment, investigation, or defense of a Claim, and the Retention will remain the responsibility of the Insured even if the Insured does not pay it due to insolvency or bankruptcy.
3. **Other Limitations:** Payments of Defense Costs are subject to the Limits of Liability and will reduce the remaining available limit. If a single Claim triggers coverage under this Coverage Part and one or more additional Coverage Parts or endorsements, the maximum combined amount payable by us shall not exceed the highest applicable single limit for any one such coverage (no stacking of limits).

SECTION IV: EXCLUSIONS

The coverage under Coverage A – Network Security and Privacy Liability is subject to the following exclusions. We will not be liable to make payment for any Claim or Loss (including any

Defense Costs or Damages) directly or indirectly arising out of, based upon, or attributable to any of the following:

1. **Uninsurable or Illegal Matters:** Any cost, loss or liability that is uninsurable under the law pursuant to which this Policy is construed. This includes, without limitation, fines, penalties, or sanctions imposed by any governmental or regulatory authority, multiplied damages, and matters deemed uninsurable as a matter of law. (However, this exclusion will not apply to the extent that such fines or penalties are covered under a separate endorsement to this Policy and are legally insurable in the applicable jurisdiction.)
2. **Known Prior Acts / Prior Notice:** Any act, error, omission, incident or circumstance that occurred prior to the inception date of this Policy if, on or before the inception date, any member of the Insured's **Control Group** knew or reasonably could have foreseen that such circumstance might result in a Claim. This exclusion also applies to any Claim or circumstance that has been the subject of any notice given under any prior insurance policy or coverage.
3. **War, Terrorism, and Nuclear Incidents:** Any war, act of war (whether declared or undeclared), invasion, military action, civil war, insurrection, rebellion, revolution, or civil commotion; any act of terrorism or terroristic warfare (including cyber terrorism); or any nuclear reaction, radiation, radioactive contamination, or the dispersal or application of pathogenic or poisonous biological or chemical materials. This exclusion applies regardless of any other cause or event contributing concurrently or in any sequence to the Claim. *(This Exclusion shall not apply to the extent (if any) that coverage may be expressly provided in an endorsement for defined cyber terrorism events in a first-party context. However, no coverage is provided under this Coverage Part for loss or liability caused by terrorism or war unless specifically endorsed.)*
4. **Bodily Injury and Tangible Property Damage:** Any Claim for actual or alleged bodily injury, sickness, disease, death, or emotional distress of any person, or for physical injury to or destruction of any tangible property (including loss of use thereof). This exclusion also applies to any Claim for mental anguish or emotional distress, pain and suffering, or similar injury alleging a resulting bodily injury. **However,** this exclusion shall **not** apply to claims of mental anguish or emotional distress brought by a third-party claimant that result directly from a covered Security Breach or Privacy Breach (for example, a claim of emotional distress by a data breach victim), **and** this exclusion does not apply to loss or corruption of electronic data (which is not considered tangible property).
5. **Contractual Liability:** Any liability assumed by any Insured under any contract or agreement, including but not limited to hold-harmless or indemnity agreements, service level agreements, or contractual warranties or guarantees. This exclusion applies to the extent the Claim against the Insured is based upon the Insured's assumption of the liability or obligations of others by contract. **However,** this exclusion shall **not** apply to:
    1. liability for a Security Breach or Privacy Breach that the Insured would have in the absence of such contract or agreement;
    2. any obligation to maintain the confidentiality or security of Personal Information or Corporate Information that the Insured has assumed by contract, **but only** to the

extent a Claim arises out of a Security Breach or Privacy Breach (for example, a contractual confidentiality agreement breached due to a hacking incident); or

3. any obligation to comply with a Privacy Law or to implement reasonable security measures required by law or contract, to the extent the Claim alleges negligence or breach of duty resulting in a Privacy Breach (this carve-back does not provide coverage for contractual penalties or fines, which remain excluded unless covered by endorsement).

(For clarity, this Coverage Part is intended to cover the Insured's liability for a third party's damages arising from a data breach or security failure. It does not cover the Insured's mere failure to meet a contract performance guarantee if no Security Breach or Privacy Breach occurred — such matters may be covered under professional liability coverage if applicable.)

6. **Fraudulent, Dishonest or Criminal Conduct:** Any deliberately dishonest, fraudulent, criminal or malicious act, error or omission, or any intentional or willful violation of law, by an Insured. If a Claim includes allegations of both covered wrongdoing and excluded conduct in this category, we will provide a defense to such allegations until there is a final judgment or final adjudication in any proceeding establishing that the Insured committed such dishonest, fraudulent, criminal or willful conduct, or a written admission by the Insured of such conduct. After such final adjudication or admission, the Insured shall reimburse us for any Defense Costs paid in connection with the allegations of such conduct. This exclusion does not apply to any Insured who did not personally commit, participate in, or ratify the alleged act, error or omission. Knowledge or conduct of one Insured shall not be imputed to any other individual Insured for the purposes of this exclusion.
7. **Unauthorized or Unlawful Collection and Distribution of Information:** Any Claim arising out of: the unauthorized or unlawful collection, acquisition, monitoring, tracking, use, sale, sharing, or distribution of Personal Information by an Insured; or any unsolicited electronic or non-electronic communication, including unsolicited marketing, advertising, spam, telemarketing, unsolicited emails or faxes, or violations of any anti-spam or do-not-call legislation (such as the Telephone Consumer Protection Act (TCPA), CAN-SPAM Act, or similar laws). This exclusion includes, but is not limited to, Claims alleging intrusion upon seclusion, invasion of privacy, or statutory violations arising from the Insured's improper collection of data or transmission of communications. **However,** this exclusion shall **not** apply to an otherwise covered Claim that results from a Security Breach or Privacy Breach. *(For example, a Claim alleging that the Insured wrongfully failed to comply with a consumer data-protection statute as a result of a hacking incident would not be excluded; but a Claim alleging the Insured unlawfully gathered personal data or sent spam marketing communications without a breach would be excluded.)*
8. **Infrastructure Outage or Failure Beyond Insured's Control:** Any Claim based upon or arising out of any failure, interruption, outage, or degradation of electrical power, utility service, internet service, cable, satellite, telecommunications, or other infrastructure not owned or controlled by the Insured. This includes the failure of external service providers

or utility providers to provide adequate service, and any outages or disruptions caused by infrastructure breakdown outside of the Insured's Computer System. **However,** this exclusion will not apply to the extent the outage or failure arises from a Security Breach or Privacy Breach occurring within the Insured's own Computer System or within the computer system of a service provider while hosting or processing the Insured's data (in which case coverage is determined as a covered Security Breach or Privacy Breach).

9. **Improvement or Upgrade Costs:** Any costs or expenses to research, develop, re-design, improve, upgrade, replace, restore, maintain or enhance the Insured's Computer Systems, security practices, procedures or any other systems, to a level beyond that which existed prior to any covered incident. This includes the cost to implement security improvements, upgrades, patches, or fixes, or the cost to comply with non-monetary relief such as an injunction or consent decree. (This exclusion does not apply to covered Data Restoration costs or other first-party loss that may be provided by a separate endorsement; however, such costs are not covered under this liability Coverage Part.)
10. **Media and Intellectual Property Liability:** Any Claim arising out of or alleging: libel, slander, defamation, disparagement, or harm to the reputation or character of any person or organization; invasion of privacy or wrongful publicity (other than a Privacy Breach as defined); infringement of copyright, title, slogan, trademark, trade dress, service mark, or trade name; plagiarism, piracy, or misappropriation of ideas; infringement of intellectual property rights or any act of passing off, unfair competition or dilution related to intellectual property; or any publishing, broadcasting, printing or media-related activities by the Insured. This exclusion applies to any Claim based on the Insured's content or media activities, including website or social media content, advertising materials, or any other media publication. **However,** this exclusion shall **not** apply to a Claim by a third party for unauthorized disclosure of their trade secrets or confidential corporate information **if and only if** such Claim results directly from a Security Breach or Privacy Breach (for example, a hack or theft of trade secrets from the Insured's Computer System). *(Coverage for other media liability or intellectual property claims may be provided by endorsement if purchased, but is not included in this base Coverage Part.)*
11. **Professional Services and Contractual Performance:** Any Claim arising out of or resulting from the rendering of or failure to render professional services, advice, or consultation by the Insured (or on the Insured's behalf), including any breach of contract or agreement for the rendering of such services. This includes, but is not limited to, any Claim alleging negligence, errors or omissions in performing professional services, or any obligation to refund fees or charges for such services. **However,** this exclusion does not apply to a Claim that is otherwise covered under Coverage A – Network Security and Privacy Liability and that arises from a Security Breach or Privacy Breach (even if the breach occurs in the course of providing professional services). *(In other words, pure professional malpractice or contract claims are not covered under this Coverage Part; those may fall under Technology Errors & Omissions coverage if purchased. But if a data breach or cyber incident occurs during professional services, the resulting cyber liability Claim may still be covered here, subject to all other terms.)*

12. **Insured vs. Insured:** Any Claim made by, on behalf of, or for the benefit of: (1) any Insured; or (2) any business entity that is owned, controlled by, or is the parent company or affiliate of any Insured. This includes any Claim brought by any Named Insured against another Insured, or by any Insured person (such as a director, officer or employee) against the Insured Organization. **However,** this exclusion shall **not** apply to:
    1. a Claim made by an employee of the Insured who is a victim of a Privacy Breach (for example, an employee whose personal data was compromised in a breach suing the Insured in their capacity as an individual data subject), **provided that** no other Insured who is a party to the Claim is directly or indirectly controlling or directing the Claimant's action; or
    2. a Claim made by an additional insured (such as a client of the Insured) that is specifically added by endorsement for the purpose of claims against the Insured.

    (Note: While some employee privacy Claims may be covered as noted above, coverage for Claims by employees of the Insured is limited in this base form. Broader coverage for employee privacy liability can be provided by endorsement if needed.)

13. **Regulatory Proceedings:** Any Claim or proceeding brought by or on behalf of a governmental, regulatory, supervisory or licensing body in the Insured's capacity as a regulated entity, including any investigation or enforcement action by such authorities. This includes, without limitation, any civil investigative demand, inquiry, or proceeding by a government agency alleging violation of privacy or data protection laws or regulations (such as a Privacy Regulatory Action). **However,** this exclusion does **not** apply to Claims brought by individuals or entities other than government agencies, even if such Claims allege violations of privacy laws (for example, a lawsuit by consumers under a privacy statute is not considered a regulatory proceeding for purposes of this exclusion). *(Defense and penalty coverage for regulatory proceedings may be offered by endorsement, but is not included in this base Coverage Part.)*
14. **Contaminant:** This Policy does not apply to any Claim, Loss or other matter based on or related to the discharge, dispersal, release, escape or presence of a **Contaminant**.
15. **(Other Exclusions):** Any other exclusions set forth in the General Terms and Conditions or elsewhere in the Policy that are not inconsistent with the above shall also apply to this Coverage Part. In the event of any conflict between these specific Coverage Part exclusions and the General Exclusions in the base Policy, the provision that is more specific to the Claim at issue shall apply.

SECTION V: NOTICES AND CONDITIONS

1. **Claims-Made and Reporting Provisions:** This Coverage Part provides coverage on a claims-made and reported basis. Coverage applies only to Claims first made against the Insured during the Policy Period (or any Extended Reporting Period, if applicable) and reported to us in writing as soon as practicable, but in no event later than the time specified in this Policy. The Insured must give written notice of any Claim to us no later than [60] days after the end of the Policy Period, unless an Extended Reporting Period applies.

2. **Notice of Claims:** In the event any Claim is made against an Insured, the Insured (or its authorized agent) must notify us in writing as soon as reasonably possible. Notice should include a description of the Claim and all relevant details (the parties involved, the alleged wrongful acts, date of occurrence, and the nature of any potential Damages). Notice of Claims shall be directed to the address or email designated in the Declarations for reporting claims. The date of mailing or electronic transmission of notice will constitute the date notice is given. Prompt notice of Claims is a condition precedent to coverage under this Policy.
3. **Notice of Potential Claims (Circumstance Reporting):** If during the Policy Period an Insured becomes aware of any circumstances or incident that could reasonably be expected to give rise to a Claim (including but not limited to any incident that the Insured believes constitutes a Security Breach or Privacy Breach), the Insured may provide written notice to us with full details of such circumstance or incident. The notice should include the specific wrongful act or incident, the dates and persons involved, the potential claimants, and the consequences or damages anticipated. If such notice is given to us during the Policy Period in accordance with this condition, then any Claim subsequently arising from the reported circumstance shall be deemed to have been first made on the date we received the circumstance notice, and will be covered (if at all) under this Policy (subject to its terms and limits), even if actually made after the Policy Period. This provision does not extend coverage beyond any date or time period provided in an applicable Extended Reporting Period unless such ERP is in force.
4. **Extended Reporting Period (Tail Coverage):**
    1. **Automatic Extended Reporting Period:** If either the Insured or we cancel or non-renew this Policy (or this Coverage Part), other than for non-payment of premium, we will provide an automatic extended reporting period of 60 days starting immediately after the end of the Policy Period. This automatic period is provided without additional charge. It covers Claims first made during this 60-day period, but only for wrongful acts or incidents that occurred before the end of the Policy Period (and after the Retroactive Date) and would have been covered by this Coverage Part. This automatic Extended Reporting Period does not reinstate or increase any Limits of Liability; it only allows additional time for reporting Claims.

    2. **Optional Extended Reporting Period:** The Named Insured has the right, upon termination of this Coverage Part or the Policy, to purchase an Optional Extended Reporting Period for an additional premium. This Optional Extended Reporting Period (often called the “tail”) will apply for the time period selected (as offered by the Insurer, e.g., 12 months or 36 months) from the end of the Policy Period. The Optional Extended Reporting Period, if purchased, must be requested in writing and the premium paid within 30 days after the termination or expiration of the Policy. If purchased, this extended period will be endorsed to the Policy. During the Optional Extended Reporting Period, coverage is only provided for Claims first made against the Insured and reported to us during the Extended Reporting

Period and arising from acts, errors, omissions, Security Breaches or Privacy Breaches that occurred entirely prior to the end of the original Policy Period (and on or after the Retroactive Date). The Extended Reporting Period does not increase or replenish the Limits of Liability – any payments made for Claims during an Extended Reporting Period are subject to the remaining unused Limits of Liability as of the end of the original Policy Period. The Extended Reporting Period is non-cancellable and the premium for it is deemed fully earned when paid.

3. **Termination of ERP Rights:** The right to any Extended Reporting Period shall not be available if the Policy is canceled due to non-payment of premium, or if the Named Insured has replaced this coverage with similar insurance (whether from the Insurer or another carrier) with no gap in coverage.

5. **Duties in the Event of a Claim:** The Insured must cooperate with us and provide all information and documentation that we may reasonably request during the handling of any Claim or potential Claim. The Insured shall assist in the investigation, settlement, or defense of any Claim. This includes helping to secure and give evidence, obtaining the attendance of witnesses, and assisting in effecting any rights of contribution or subrogation. The Insured must not admit liability, incur any expense, voluntarily make any payment, assume any obligation, or enter into any settlement in connection with any Claim (or circumstance that could lead to a Claim) without our prior written consent. Any such admission, expense, payment, obligation or settlement made by an Insured without our consent will be at the Insured's own cost and may result in a loss of coverage. However, the refusal of the Insured to consent to a settlement recommended by us will be handled as described in paragraph F below.
6. **Settlement Authority and Consent:** We have the right to investigate and settle any Claim as we deem appropriate. We will not settle any Claim without the consent of the **Named Insured**, which consent shall not be unreasonably withheld. If the Insured refuses to consent to a settlement or compromise recommended by us and acceptable to the claimant, our liability for that Claim shall not exceed the amount for which the Claim could have been settled (including Defense Costs up to the date of such refusal). After such refusal, we will also have the right to withdraw from the defense of the Claim by tendering control of the defense to the Insured, and the Insured agrees to assume the responsibility for any further Defense Costs and damages exceeding the amount of our recommended settlement.
7. **Other Insurance:** This insurance shall apply only in excess of any other valid and collectible insurance available to the Insured, unless such other insurance is written specifically as excess insurance over the Limits of Liability of this Policy. This condition will not apply to other insurance written specifically as excess of this coverage. When this insurance is excess, we will have no duty to defend any Claim or pay any Defense Costs until the other insurance has been exhausted. If a Claim is covered both by this Coverage Part and another policy of the Insured (whether primary, excess, or umbrella), we will coordinate with such other insurer on defense and indemnity, but the total amount

paid will not exceed the actual loss or applicable limits, and in no case will we pay more than our share in accordance with the applicable insurance clauses.

8. **Subrogation:** In the event of any payment under this Coverage Part, we shall be subrogated to all the Insured's rights of recovery against any third party who may be liable for the loss (including against perpetrators of a cyber incident or other responsible parties). The Insured shall do nothing to prejudice such rights and shall execute all papers required and take any reasonable action necessary to secure such rights. We agree, however, that we will not exercise any subrogation rights against any individual Insured under this Policy unless the Claim in question was brought about or contributed to by the intentional, dishonest or fraudulent act or omission of that individual Insured. Any recovery (after deducting our costs and expenses of recovery) shall be allocated first to us up to the amount of our payments, then to the Insured for any retention or other amounts paid, and lastly any remainder to the Insured as applicable.
9. **Action Against the Insurer:** No action shall lie against us unless, as a condition precedent, the Insured has fully complied with all the terms of this Policy. No person or organization shall have any right under this Policy to join us as a party to any action against any Insured to determine the Insured's liability, nor shall we be impleaded by the Insured or their legal representatives. An action against us may only be brought after the Insured's obligation to pay has been finally determined either by final judgment against the Insured after actual trial or by written agreement of the Insured, the claimant and us. Any such action must be started within the time period allowed by applicable law.
10. **Fraud and Misrepresentation:** This Coverage Part is issued in reliance upon the truth of statements made in the application and any supplemental materials. In accordance with applicable law, any material misrepresentation, omission, concealment or incorrect statement in the application may render the Coverage Part or Policy void as to an Insured, or result in denial of coverage, if such misrepresentation was made with intent to deceive or materially affected our acceptance of the risk.
11. **Conformance with Law:** In the event that any provision of this Coverage Part conflicts with the laws of any jurisdiction controlling the construction of this Coverage Part, the provision shall be deemed amended to conform to such law. If any portion of this Coverage Part is deemed invalid or unenforceable, it shall not affect the validity of the remaining provisions.
12. **Titles and Headings:** The descriptions in the headings and sub-headings of this Coverage Part are solely for convenience and form no part of the terms and conditions of coverage. Words in bold typeface are defined in Section II or in the Policy's general definitions.
13. **Coverage Part Integration:** Except as specifically provided in this Coverage Part, all terms, conditions, provisions and limits of the general Policy (including the Common Policy Conditions and Definitions) apply to this Coverage Part. In case of any inconsistency between the terms of this Coverage Part and any other part of the Policy, the terms of this Coverage Part will control with respect to the coverage afforded hereunder.

End of Cyber Liability Coverage Part.

(All other terms, conditions, and exclusions of the Policy remain unchanged